

HOUSE No. 733**The Commonwealth of Massachusetts**

PRESENTED BY:

Erika Uyterhoeven and Tara T. Hong*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to educator pay.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>1/14/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>1/30/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>1/30/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>2/3/2025</i>
<i>Christopher Richard Flanagan</i>	<i>1st Barnstable</i>	<i>2/3/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>2/3/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>2/3/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>2/11/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/19/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>2/19/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/28/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>3/6/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>3/11/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>4/2/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>4/16/2025</i>
<i>Ryan M. Hamilton</i>	<i>15th Essex</i>	<i>5/14/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>9/21/2025</i>
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>1/27/2026</i>

HOUSE No. 733

By Representatives Uytterhoeven of Somerville and Hong of Lowell, a petition (accompanied by bill, House, No. 733) of Erika Uytterhoeven, Tara T. Hong and others relative to educators' pay. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to educator pay.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 71 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by striking out section 40, and inserting in place thereof the following
3 section:-

4 Section 40. (a) It is hereby declared to be the goal of the commonwealth to guarantee that
5 all public school educators are paid not less than a living wage as defined by the Massachusetts
6 Institute of Technology Living Wage Calculator.

7 (b) In a school district as defined in section 2 of chapter 70 of the general laws, or an
8 educational collaborative formed under the provisions of section 4E of chapter 40 of the general
9 laws, the compensation of each teacher, as defined in chapter 32 of the general laws and pursuant
10 to regulation 807 CMR 4.00, except a person in training and except a person employed as a
11 temporary substitute, and the compensation of each "education support professional," shall be at
12 a rate of not less than seventy thousand dollars for teachers and a rate of not less than fifty-five

thousand dollars for education support professionals for school years commencing after July first, two thousand and twenty-five. The compensation paid to such teachers and education support professionals shall be deemed to be fully earned at the end of the school year, and proportionately earned during the school year. Payment of such compensation may be deferred to the extent that equal payments may be established for a twelve-month period including amounts payable in July and August subsequent to the end of the school year.

(c) Beginning in fiscal year two thousand and twenty-six, school districts and educational collaboratives, as defined herein, shall be reimbursed by the commonwealth for the cost increases incurred by such school districts and educational collaboratives as a result of increasing teacher and education support professional compensation pursuant to this section. Reimbursements for the cost increases shall be distributed in accordance with this paragraph; provided, however, that no funds for said reimbursements shall be deducted from funds distributed pursuant to chapter 70 of the general laws or other existing state appropriations. The reimbursement amounts to each school district and educational collaborative shall be equal to 100 per cent of the increase in the year in which the increase occurs; 60 per cent of that amount in the first year following; 40 per cent of that amount in the second year following; and 20 per cent of that amount in the third year following.

(d) For the purposes of this section, the term “education support professional” shall include, but not be limited to, a paraeducator, tutor, family liaison, interpreter, translator, qualified practitioner, as defined in the school-based Medicaid reimbursement program, clerical services worker, custodial and maintenance services worker, food services worker, health and student services worker, security services worker, skilled trades worker, technical services worker, and transportation services worker employed by a school district; provided, however,

that the term shall not include a teacher, as defined in chapter 32 of the general laws, or any other employee of a school district or educational collaborative whose role requires certification under section 38G of this chapter or under chapter 74 of the general laws.

(e) Beginning on July first, two thousand and thirty-five, and for each subsequent five-year period, the executive office of labor and workforce development shall calculate an adjusted minimum compensation rate for teachers and education support professionals by increasing the current rate of compensation by the rate of inflation for the previous five-year period. Said adjusted rate of compensation shall be calculated to the nearest cent using the consumer price index for urban wage earners and clerical workers or a successor index, for the sixty months prior to July first of the subsequent five-year period, as calculated by the United States department of labor. Each adjusted minimum compensation rate calculated under this section shall take effect on the following September first.

(f) Effective September first of the five-year period starting on July first, two thousand and thirty-five, and effective for each subsequent five-year period thereafter, the compensation rates shall be adjusted as laid out in subsection (e) and be eligible for reimbursement under subsection (c) of this section.

(g) The implementation of this section shall be consistent with the provisions of chapter 150E of the General Laws, including but not limited to the duty to bargain on wages, hours and working conditions, or any agreements entered into in accordance with said chapter 150E of the General Laws. Nothing in this section shall be construed as limiting a school district or educational collaborative from providing teachers or educational support professionals with compensation that is higher than the minimum amounts as defined herein.

58 SECTION 2. Said section 40 of said chapter 71, as most recently amended by section 1 of
59 this act, is hereby further amended by striking out the words “seventy thousand dollars for
60 teachers and a rate of not less than fifty-five thousand dollars for education support professionals
61 for school years commencing after July first, two thousand and twenty-five.” and inserting in
62 place thereof the following words:- “eighty thousand dollars for teachers and a rate of not less
63 than sixty-five thousand dollars for education support professionals for school years
64 commencing after July first, two thousand and thirty.”

65 SECTION 3. Section 2 of this act shall take effect on July 1, 2030.